

Motion of Motion and Motion to Compel Further Responses to Requests for Admission

The motion to compel further responses to Requests for Admission, Set One, is DENIED.

The accompanying separate statement fails to adhere to Rules of Court, rule 3.1345. Although Plaintiff attempts to cure the deficiency on reply, it is untimely. Accordingly, the motion is denied.

Motion of Motion and Motion to Compel Further Responses to Request for Production of Documents

The motion to compel further responses to Request for Production, Set One, is GRANTED IN PART AND DENIED IN PART.

As an initial matter, the motion is not untimely. The 45 day limitation in bringing a motion to compel further responses only relates to *verified responses* and not objection only responses, or where no responses were given at all.

Plaintiff's motion to compel a further response to Request for Production, Set One, No. 1, is GRANTED. Defendant's objections are OVERRULED.

Plaintiff's motion to compel further responses to Request for Production, Set One, Nos. 2 through 20, is DENIED. The accompanying separate statement as to these requests fails to adhere to Rules of Court, rule 3.1345.

Plaintiff's motion to compel a further response to Request for Production, Set One, Nos. 21 through 25, is GRANTED. Plaintiff states Defendant failed to provide any response to these requests and Defendant in opposition does not dispute that contention.

Defendant is to provide further code-compliant, verified responses, to Requests for Production, Set One, No. 1, and Nos. 21 through 25, within fifteen (15) days of this court's order.

Monetary Sanctions

All requests for monetary sanctions is DENIED. Each party is successful and unsuccessful in bringing and opposing the motions.

26CV-00790

Mirastar Federal Credit Union vs Andrea Ketchum, et al.

Motion to Set Aside Default and Default Judgment

The motion to set aside default and default judgment is DENIED.

Service in this matter appears to be timely and proper and Defendants' motion does not disturb that determination. Further, as noted by the opposition, the proposed answer would not render a different result. In the proposed answer, Defendants admit all the statements of the complaint are true, with a noted exception that does not provide a defense to the complaint. Accordingly, the motion is denied.